

HOUSE SUBSTITUTE FOR
SENATE BILL NO. 903

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1280h.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

- 1 Sec. 1280h. (1) The board of a school district or board of
2 directors of a public school academy that receives a weighted
3 foundation payment under section 22b of the state school aid act of
4 1979, MCL 388.1622b, must do all of the following:
- 5 (a) Address student achievement and success, including, but
6 not limited to, literacy and mathematics.
- 7 (b) Provide direct English language development instruction to
8 English language learners.
- 9 (c) Provide instruction to at-risk pupils that is consistent

1 with the requirements under section 1280f.

2 (d) Administer to English language learners the English
3 language proficiency assessment known as the "WIDA ACCESS for
4 English language learners" or the "WIDA Alternate ACCESS".

5 (e) Agree to meet or exceed the minimum number of minutes per
6 week, as determined by the department under subsection (2), that
7 the school district or public school academy provides direct
8 English language development instruction.

9 (f) Implement a multi-tiered system of supports that is an
10 evidence-based framework that uses data-driven problem solving to
11 integrate academic and behavioral instruction and that uses
12 intervention delivered to all pupils in varying intensities based
13 on pupil needs. The multi-tiered system of supports must be
14 implemented in grades K to 12, or, if the school district or public
15 school academy does not operate all of grades K to 12, for all of
16 the grades it operates. The multi-tiered system of supports
17 described in this subdivision must provide at least all of the
18 following essential components:

19 (i) Team-based leadership.

20 (ii) A tiered delivery system.

21 (iii) Selection and implementation of instruction,
22 interventions, and supports.

23 (iv) A comprehensive screening and assessment system.

24 (v) Continuous data-based decision making.

25 (g) Support pupil needs for pupils counted toward the school
26 district's or public school academy's weighted pupil membership,
27 including, but not limited to, items identified in a district's
28 Michigan Integrated Continuous Improvement Process (MICIP) plan. An
29 amount not to exceed 2% of the amount received from weighted

1 foundation payments under section 22b of the state school aid act
2 of 1979, MCL 388.1622b, may be used to support administrative costs
3 related to complying with this section. Administrative costs
4 include, but are not limited to, central office salaries and
5 benefits, business and fiscal services, and school administrative
6 staff and expenses, and do not include costs associated with direct
7 instructional staff working with pupils counted toward the weighted
8 pupil membership.

9 (h) Provide information to the department, in a form and
10 manner determined by the department, necessary for the department
11 to monitor programs and services described in this section for
12 compliance with the requirements of this section, and to ensure the
13 multi-tiered system of supports and English language learner
14 programs are implemented with fidelity.

15 (i) Allow access for the department or the department's
16 designee to audit all records related to the program for which it
17 receives those funds. The district shall reimburse this state for
18 all disallowances found in any audit.

19 (j) Communicate the following information to parents and legal
20 guardians at least annually, as applicable for grades offered by
21 the school district or public school academy:

22 (i) Literacy-related results for the school district or public
23 school academy, including multiyear trend data, from the grade 3
24 Michigan student test of educational progress (M-STEP), the grade 7
25 Michigan student test of educational progress (M-STEP), and the SAT
26 for pupils who are economically disadvantaged or English language
27 learners. The school district or public school academy shall ensure
28 that information described in this subparagraph is reported in a
29 manner that safeguards pupil privacy.

1 (ii) Information detailing the amount of funding received from
2 weighted foundation payments under section 22b the state school aid
3 act of 1979, MCL 388.1622b, how the school district or public
4 school academy distributed that funding, and what evidence-based
5 interventions were implemented with that funding. The information
6 reported under this subparagraph must include a method, including
7 contact information, for parents or legal guardians to provide
8 feedback on the use of the funding as well as to seek more
9 information about services and interventions available for their
10 children.

11 (2) The department shall establish English language learner
12 program models that establish a minimum number of minutes per week
13 that school districts and public school academies must provide
14 direct English language development instruction for pupils
15 according to the pupil's proficiency levels. The program models
16 described in this subsection must be compliant with federal
17 requirements related to English language learner program services.

18 (3) The department shall monitor school districts and public
19 school academies for compliance with this section and may require
20 school districts and public school academies to provide any
21 information to the department, in a form and manner determined by
22 the department, necessary to fulfill this requirement.

23 (4) As used in this section:

24 (a) "At-risk pupil" means a pupil in grades pre-K to 12 for
25 whom the district has documentation that the pupil meets any of the
26 following criteria:

27 (i) The pupil is economically disadvantaged.

28 (ii) The pupil is an English language learner.

29 (iii) The pupil is chronically absent as defined by and reported

1 to the center for educational performance and information created
2 under section 94a of the state school aid act of 1979, MCL
3 388.1694a.

4 (iv) The pupil is a victim of child abuse or neglect.

5 (v) The pupil is a pregnant teenager or teenage parent.

6 (vi) The pupil has a family history of school failure,
7 incarceration, or substance abuse.

8 (vii) The pupil is an immigrant who has immigrated within the
9 immediately preceding 3 years.

10 (viii) The pupil did not complete high school in 4 years and is
11 still continuing in school as identified in the Michigan cohort
12 graduation and dropout report.

13 (ix) For pupils for whom the results of the state summative
14 assessment have been received, is a pupil who did not achieve
15 proficiency on the English language arts, mathematics, science, or
16 social studies content area assessment.

17 (x) Is a pupil who is at risk of not meeting the school
18 district's or public school academy's core academic curricular
19 objectives in English language arts or mathematics, as demonstrated
20 on local assessments.

21 (b) "English language learner" and "weighted pupil membership"
22 mean those terms as defined in section 6 of the state school aid
23 act of 1979, MCL 388.1606.